

PENAL POLICY: FINAL PROJECT SUBMISSION

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Introduction

For my final project, I have chosen to submit a mixed-media photo series which serves as a commentary on the racial dimensions of incarceration in Canada. I have chosen three different images which I think reflect the ways in which the subjection of Black, Muslim, and Indigenous individuals to imperial and colonial violence has contributed to their over-incarceration within Canada's penal system.

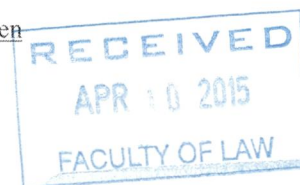
Image 1

The first image features a line of Black inmates entering an institution in orange jumpsuits and chains. Juxtaposed over this image is a centuries old photo of three African slaves. While the images used were not actually taken in Canada, they nevertheless are meant to show how the experience of slavery and the legacies of abuse and racism which have followed continue to impact on the lives of Black people living in North America, including in Canada. As Bryan Stevenson and other advocates have pointed out, in many ways the prison is the modern-day equivalent of slavery for Black people living in North America.¹ Beyond these parallels, it is also quite clear that the intergenerational trauma caused by slavery and systemic racism continues to reverberate within Black communities throughout the Americas, resulting in poverty, substance abuse, lateral violence, and dramatic over-representation within the prison complex.

Image 2

The second image in the series is meant to show how the experience of Western imperialism in the Middle East can be directly linked to the over-incarceration of Muslim men in both Canada and the US, most notably in Guantanamo Bay, but also in specialized institutions here in Canada. The image of people lined up in orange jumpsuits with hoods over their faces is actually an image of protesters staging an action to bring attention to the treatment of prisoners in Guantanamo Bay, the overwhelming majority of whom are men deemed to be "terrorists" by the US government. This image is overlain by a photo of US soldiers smiling for the camera after planting the US flag in the broken soil of a country "saved" by the heavy hand of US might. The destruction wrought by Western powers, particularly the US but also Canada as an ally to its southerly neighbour, has resulted in the fracturing of families, communities, and nations. While

¹ http://www.ted.com/talks/bryan_stevenson_we_need_to_talk_about_an_injustice?language=en



the Harper government continues to push Canada further down the road of mistrust toward the Muslim world and fear for the Muslim “other,” we arguably move further away from recognizing the causes of unrest in the Middle East, therefore barring any potential for improvement in relations. The stigma associated with being Muslim in the US or Canada, and the trauma inflicted by Western imperialism throughout the Arab world, has contributed to militarization, hatred, and violent resistance to the imposition of Western ideals. These experiences are key contributors to the experience of over-incarceration of Muslims within the North American prison system.

Image 3

Finally, the third image I have chosen is that of an Indigenous inmate who is currently serving at Stoney Mountain penitentiary in Manitoba. On top of this image is a black and white photo of a group of residential school pupils standing alongside school staff outside of the Onion Lake Roman Catholic Residential School. While the residential school experience is just one of facet of the violence inflicted by nearly five hundred years of colonialism in Canada, it is perhaps one of the most vivid illustrations of the ways in which Indigenous people have been mistreated by the Canadian state. The forced consumption of colonial values and mores has resulted in epidemic proportions of violence, substance abuse and poverty within Indigenous communities, as a result of what Justice Murray Sinclair has referred to as a “collective social depression.”² These social phenomena have led to the extreme over-representation of Indigenous people in the Canadian prison population, to the extent that some authors have referred to the prison as the “neocolonial reserve.”³

Conclusion

It is hoped that this photo series may encourage dialogue around the racial dimensions of prison justice in Canada and throughout Turtle Island, and that a deeper understanding of the generational effects of colonialism and imperialism will help law students going forward to use the law as a tool for change, rather than simply reproducing the status quo of racial injustice.

² Associate Chief Justice Murray Sinclair, “A Presentation to the Western Workshop of the Western Judicial Education Centre” (14 May 1990).

³ Gillian Balfour, “Do Law Reforms Matter? Exploring the Victimization-Criminalization Continuum in the Sentencing of Aboriginal Women in Canada”, *International Review of Victimology* 1:18 (2012) 1.

PHOTO SOURCES

Image 1:

- o http://www.diversioninitiatives.net/2012_04_01_archive.html
- o <http://www.encyclopedia.com/topic/slavery.aspx>

Image 2:

- o http://cdn.theatlantic.com/static/infocus/masks040313/m10_59130596.jpg
- o <http://publicradio1.wpengine.netdna-cdn.com/newscut/files/2015/02/AP4502230131.jpg>

Image 3:

- o http://www.thestar.com/opinion/commentary/2013/03/12/canadas_lawandorder_agenda_weighs_heavily_on_aboriginal_people.html
- o http://scaa.sk.ca/ourlegacy/exhibit_schools